SOLAR SERVICES AGREEMENT SCHEDULES

SCHEDULE 1: DEFINITIONS

The Parties agree and acknowledge that the following definitions and interpretation clauses should apply to this Agreement. Words importing the singular shall include the plural and vice versa where the context requires. **"Including"** means **"including without limitation"** (with related words being construed accordingly), and any words introduced by those words or any similar expression shall be construed as illustrative only. Where any Party is required to perform any act or give any consent, approval, agreement or notification or do any other thing, it shall, in the absence of any specified time limit perform that act, give its consent, approval, agreement or notification or do that other thing or (as the case may be) notify withholding of its consent, approval or agreement as soon as is reasonably practicable in all the circumstances. The headings in this Agreement are inserted for convenience or reference only and shall not be used in its interpretation. All words shall bear their natural meaning. The Parties have each had the opportunity to take legal advice on this Agreement and all terms are to be construed in their ordinary meaning, and no term shall be construed *contra proferentem*. A reference to any legislation or legislative provision includes any statutory modification or re-enactment of, or legislative provision substituted for, and any sub-ordinated legislation issued under, that legislation or legislative provision. In addition to other terms specifically defined elsewhere in the Agreement, where capitalised, the following words and phrases shall be defined as follows:

"Actual Monthly Consumption"	means, in respect of a calendar month of the Term the amount of energy measured in kilowatt hours received on UL's side of the Delivery Point during that month as measured by the Metering Device, pursuant to clause 4.2;
"Actual Monthly Production"	means the amount of energy produced or capable of being produced in kilowatt hours recorded by the Metering Device or according to Good Solar Industry practices specifically outlined in Schedule 9 during each calendar month of the Term, pursuant to clause 4.2;
"Additional CBE Conditions"	means any conditions precedent required to be performed by CBE as set out in the MOU or in the Project Data Sheet;
"Affiliate"	means, with respect to any specified Person, any other Person directly or indirectly controlling, controlled by or under common control with such specified Person;
"Agreement"	means this agreement and the schedules and appendix to it;
"Applicable Law"	means, with respect to any Person, any constitutional provision, law, statute, rule, regulation, ordinance, treaty, order, decree, judgment, decision, certificate, holding, injunction, registration, license, franchise, permit, authorisation, guideline, Governmental Approval, consent or requirement of any Governmental Authority having jurisdiction over such Person or its property, enforceable at law or in equity, including the

	interpretation and administration thereof by such Governmental Authority;
"Business Day"	means any day other than Saturday, Sunday or any other day as required or authorised by the governing law of the Territory to be closed for business;
"CapEx Relief Event"	has the meaning given to it in clause 13.1.3;
"Change in Control"	means a change in the control of the majority voting of the common voting shares in CBE or a change in the ability to appoint a majority or 50% of the board of directors (or equivalent) of CBE ;
"Change in Law"	means any of the following events occurring after the date of the Agreement : (a) the repeal, amendment, making or enactment of any Applicable Law; (b) the change in the judicial or administrative interpretation of any Applicable Law; or (c) the change or introduction or introduction of any condition attaching to any Governmental Approval (including any condition in connection with the renewal, extension or replacement of any Governmental Approval) required by either Party for the purposes of the Agreement, excluding any Force Majeure Event and excluding any new Environmental Attributes or any increases, or any widening of the eligibility criteria or extension of any Environmental Attributes or the cancellation, reduction, removal or other restriction of access to one or more Environmental Attributes;
"Commercial Operations Conditions"	means together CBE Conditions and UL Conditions;
"Commercial Operations Achievement Security"	means an on-demand bank guarantee issued in a form and from a bank approved in writing by UL for the amount and duration as set out in the Project Data Sheet;
"Commercial Operations Achievement Security End Date"	has the meaning given to it in clause 18.1;
"Commercial Operations Date"	means the date on which all Commercial Operations Conditions have been met or waived;
"Commercial Operations Longstop Date"	means the date so specified in the Project Data Sheet;

"Commercial Operational Period"	means the period commencing on the Commercial Operations Date and expiring on the termination or expiry of the Agreement in accordance with its terms;
"Confidential Information"	has the meaning given to it in clause 21.3.1;
"Connection Agreement"	has the meaning given to it in the Project Data Sheet;
"Curtailed Operation"	means any period where UL is unable to accept the total amount of Solar Output such that the System is required to curtail energy output;
"Delivery Point"	has the meaning given to it in the Project Data Sheet;
"CBE Default"	has the meaning given to it in clause 14.1.1;
"CBE Conditions"	has the meaning given to it in clause 2.1;
"CBE Persons"	means any employees, officers, agents or sub-contractors (or employees' officers, agents of such sub-contractors) in respect of the design, commissioning, construction, operation or maintenance of the Solar Plant;
"Discount"	where used in this Agreement, has the meaning given to it in schedule 2 (*Pricing Schedule*);
"Early Termination Fee"	means the appropriate figure in schedule 4 (*Early Termination Fee*);
"Energy Deficiency Quantity"	has the meaning given to it in clause 4.2.10;
"Energy Regulator"	has the meaning given to it the Project Data Sheet;
"Energy Surplus Quantity"	has the meaning given to it in clause 4.2.10;
"Enforceability Relief Event"	has the meaning given to it in clause 13.1.2;
"Environmental Attributes"	means, without limitation, those Environmental Attributes set out in the MOU or in the Project Data Sheet) and any other payment, certificate, allowance or other benefit (whether in existence at the date of the Agreement or at any time in the future) received or accruing (or capable of being received or accrued) to either Party that is associated with the Solar Plant and/or the Solar Output but excluding any Environmental Incentives;
"Environmental Incentives"	means any accelerated depreciation, installation or production-based incentives, investment tax credits and subsidies including, but not limited to, the subsidies in the MOU or the Project Data Sheet;
"Environmental Incentive Change in Law"	has the meaning given to it in 13.1.1;

“Estimated Energy Output” means the energy in kilowatt hours as calculated by the Estimated Energy Output Calculation in schedule 9.

"Expected Solar Output" means the forecasted Solar Output set out in schedule 5 (*Estimated Monthly and Annual Production*);

"Financing Party" means, as applicable (i) any Person (or its agent) from whom CBE (or an Affiliate of CBE) leases the System, or (ii) any Person (or its agent) who has made or will make a loan to or otherwise provider financing to CBE (or an Affiliate of CBE) with respect to the System;

"Force Majeure Event" means any act or event that:

(a) prevents the affected Party from performing its obligations in accordance with the Agreement;

(b) is beyond the reasonable control, and not the result of the fault or negligence, of the affected Party; and

(c) having arisen, such Party is unable to overcome such act or event with the exercise of all reasonable care and skill (including the expenditure of reasonable sums),

subject to the foregoing conditions, **"Force Majeure Event"** shall include without limitation the following acts or events:

(i) natural phenomena, such as storms, hurricanes, floods, lightning, volcanic eruptions and earthquakes;

(ii) explosions or fires arising from lightning or other causes unrelated to the acts or omissions of the Party seeking to be excused from performance;

(iii) acts of war or public disorders, civil disturbances, riots, insurrection, sabotage, epidemic, terrorist acts, or rebellion;

(iv) strikes or labour disputes (except strikes or labour disputes caused solely by employees of CBE or as a result of such party's failure to comply with a collective bargaining agreement); and/or

(v) action or inaction by a Governmental Authority.

A Force Majeure Event shall not be based on the economic hardship of either Party;

"Good Solar Industry Practice"	means that degree of skill and care which would reasonably and ordinarily be expected of a contractor experienced in the same type of undertaking (designing, engineering, installing, constructing, completing, commissioning, testing, operating and maintenance) in relation to projects of a similar size, scope, scale, nature and complexity as the Solar Plant;
"Governmental Approval"	means any approval, consent, franchise, permit, certificate, resolution, concession, license, or authorisation issued by or on behalf of any applicable Governmental Authority;
"Governmental Authority"	means any state, regional, county, town, city, or municipal government, whether domestic or foreign, or any department, agency, bureau, or other administrative, regulatory or judicial body of any such government;
"Group Company"	means UL and any subsidiary of UL;
"Incorporated MOU Terms"	has the meaning given to it in clause 21.4.3
"Insolvency Event"	means with respect to a Party, that either: (a) such Party: (i) is dissolved (other than pursuant to a consolidation, amalgamation or merger); (ii) becomes insolvent or is unable to pay its debts or fails or admits in writing its inability generally to pay its debts as they become due; (iii) makes a general assignment, arrangement or composition with or for the benefit of its creditors; (iv) institutes or has instituted against it, by a Regulatory Authority with primary insolvency, rehabilitative or regulatory jurisdiction over it in the jurisdiction of its incorporation or organisation or the jurisdiction of its head or home office, a proceeding seeking a judgment of insolvency or bankruptcy under any bankruptcy or insolvency law or other similar law affecting creditor's rights, or a petition is presented for its winding up or liquidation by it or such regulator, supervisor or similar official;

(v) institutes or has instituted against it a proceeding seeking a judgment of insolvency or bankruptcy under any bankruptcy or insolvency law or other similar law affecting creditors' rights, or a petition is presented for its winding up or liquidation, and, in the case of any such proceeding or petition instituted or presented against it, such proceeding or petition is instituted or presented by a person or entity not described in paragraph (iv) above, and

(A) results in a judgment of insolvency or bankruptcy or the making of an order for its winding up or liquidation; or

(B) is not frivolous or vexatious; or

(C) is not dismissed, discharged, stayed or restrained in each case within 30 days of the institution or presentation thereof; or

(vi) has a resolution passed for its winding up, official management or liquidation (other than pursuant to a consolidation, amalgamation or merger); or

(vii) seeks or becomes subject to the appointment of an administrator, provisional liquidator, conservator, receiver, trustee, custodian or other similar official for it or for all or substantially all its assets (other than pursuant to a consolidation, amalgamation or merger); or

(viii) has a secured party take possession of all or substantially all its assets or has a distress, execution, attachment, sequestration or other legal process levied, enforced or sued on or against all or substantially all its assets and such secured party maintains possession, or any such process is not dismissed, discharged, stayed or restrained, in each case within 30 days thereafter; or

(ix) causes or is subject to any event with respect to it which, under the applicable laws of any jurisdiction, has an analogous effect to any of the events specified in paragraphs (a) to (h) inclusive; or

(x) takes any action in furtherance of, or indicating its consent to, approval of, or acquiescence, in any of the foregoing acts;

(b) a proceeding or case has been commenced without the application or consent of such Party in any court of competent jurisdiction seeking:

(i) its liquidation, reorganisation, dissolution or winding-up or the composition or readjustment of debts or,

(ii) the appointment of a trustee, receiver, custodian, liquidator or the like of such Party under any bankruptcy law, and such proceeding or case has continued undefended, or any order, judgment or decree approving or ordering any of the foregoing shall be entered and continue un-stayed and in effect for a period of sixty (60) days; or

(c) an occurrence analogous to the circumstances specified in (a) or (b) occurs in any other jurisdiction in which the Party operates or otherwise carries on its business;

"Interconnection Date" Means that date on which CBE notifies UL that the Solar Plant are substantially complete and operating and are delivering Solar Energy to the Delivery Point, and is being delivered to UL.

"Invoice" has the meaning given to it in clause 6.2;

"Invoice Date" has the meaning given to it in clause 6.2;

"LCIA" has the meaning given to it in clause 21.1.2;

"LCIA Rules" means the LCIA Arbitration Rules 2014;

"Liens" means any mortgage, pledge, lien, charge, security interest, encumbrance or claim of any nature;

"Local Electricity Supplier" means a third party (for the avoidance of doubt, not including CBE) providing electricity to UL for consumption at the Premises or purchasing electricity exported from the Premises;

"Local Grid Operator"	means the local electric distribution provider and operator providing electric distribution and interconnection services to UL at the Premises;
"Losses"	means all losses, liabilities, claims, demands, suits, causes of action, judgments, awards, damages, cleanup and remedial obligations, interest, fines, fees, penalties, costs and expenses (including all attorneys' fees and other costs and expenses incurred in defending any such claims or other matters or in asserting or enforcing any indemnity obligation);
"Mandatory Requirements"	has the meaning given to it in clause 7.1.2.1.
"Market Reference Price"	is equal to the total per kWh charges in the Reference Bill divided by the sum of the total kWh consumed in the Reference Bill. The per kWh charges shall include energy charge, subsidy, streetlight levy and any other per kWh charge excluding VAT. If by reason of changes to the presentation or categorization of component charges reflected in the Reference Bill is no longer an adequate and reasonable means for ascertaining per kWh charges payable, then either party may refer determination of the Market Reference Price to Dispute Resolution to determine an appropriate Market Reference Price.
“Material Unilever Default”	means a Unilever breach of this Agreement that leads to an evidenced material and adverse change in the scope or method of CBE’s work scope;
"Maximum Market Rate"	has the meaning given to it in schedule 2 (*Pricing Schedule*);
"Metering Device"	means the metering equipment installed at the Solar Plant to measure the electricity exported from the Solar Plant, being as set out in schedule 3 (*Description of Premises and System*) of this Agreement;
"Metering Entity"	has the meaning given to it in clause 4.2.1;
"Metering Specification"	has the meaning given to it in schedule 3 (*Description of Premises and System*);
"Minimum Market Rate"	has the meaning given to it in schedule 2 (*Pricing Schedule*);
"MOU"	means the memorandum of understanding (if any) entered into as referred to in the Project Data Sheet;
“Normal Operation”	means any period where the System is operating normally and UL consumes all of the Solar Output without curtailment or the occurrence of a System Event.
"Parent Company"	has the meaning, if any, given to it in the MOU or the Project Data Sheet;

"Parent Company Guarantee"	means a guarantee, in a form approved by UL and issued by a guarantor approved by UL;
"Party" or **"Parties"**	has the meaning given to it in the preamble to this Agreement;
"Person"	means an individual, partnership, corporation, limited liability company, business trust, joint stock company, trust, unincorporated association, joint venture, firm, or other entity, or a Governmental Authority;
"CBE Planned Outage"	means such hours identified in schedule 6 (*Planned Outage Schedule*) during which time the Solar Plant shall not be capable of generating Solar Output;
"UL Low Consumption Period"	means such hours identified in schedule 6 (*Planned Outage Schedule*) during which UL only be obligated to accept or pay for electricity from the Facilities that they consume
"Premises"	means the premises described in schedule 3 (*Description of Premises and System*) of this Agreement. For the avoidance of doubt, the Premises includes the entirety of any structures and underlying real property located at the address described in 3 (*Description of Premises and System*) of this Agreement;
"Property Arrangements"	has the meaning given to it in clause 3.1.1.3;
"Rate"	has the meaning given to it in schedule 2 (*Pricing Schedule*);
"Reference Bill"	For each year of the Agreement, the average of the electric utility bill or bills for UL for the consecutive 12 month period immediately prior to the commencement of such year;
"Records"	has the meaning given to it in clause 7.5.1;
"Removal Notice"	has the meaning given to it in clause 15.1.1.1;
"Reporting Rights"	means the rights to claim any Environmental Attributes as belonging to a particular party, including but not limited to those set out in the MOU or otherwise communicated prior to the date of this Agreement between the Parties;
"Required Insurances"	means the policies of insurance described in schedule 13;
"Required Solar Output"	has the meaning given to it in schedule 2 (*Pricing Schedule*);
"RSP"	has the meaning given to it in clause 7.1.2;
"Selling Rate"	the average retail selling rate offered by four banks jointly agreed to by the parties
"Shortfall"	has the meaning given to it in clause 4.3.1;
"Shortfall Payment"	has the meaning given to it in clause 4.3.2;

"Solar Plant"	means the System and the Metering Device installed at the Premises, more specifically described in schedule 3 (*Description of Premises and System*) of this Agreement;
"Solar Output"	means the supply of electrical Production from the System and any Environmental Attributes;
"Solar Output Payment"	has the meaning given to it in clause 6.1;
"System"	means the integrated assembly of photovoltaic panels, mounting assemblies, inverters, converters, metering, lighting fixtures, transformers, ballasts, disconnects, combiners, switches, wiring devices and wiring, more specifically described in schedule 3 (*Description of Premises and System*) of this Agreement;
"System Event"	being any period during which UL is unable to accept the Available Energy generated by the System due to a constraint, unavailability, interruption, breakdown, inoperability or failure of or disconnection from, the whole or any part of the UL electrical network which is not caused due to any act or omission of CBE or a Contractor.
"Tax"	includes: (a) all present or future taxes, fees, levies, duties, imposts, assessment royalties, tariffs, fees and charges imposed or assessed in respect of this Agreement including revenues hereunder by all competent authorities including income tax, payroll tax, statutory pensions and workers' compensation payments and contributions, sales tax, customs duty, excise, and stamp duty, as well as interest, penalties and additions thereto; but (b) does not include value-added tax, goods and services tax or any tax analogous thereto (but excludes any statutory late payment interest or penalties);
"Term"	means the period specified the Project Data Sheet, beginning on the commencement of the Commercial Operational Period, or as otherwise extended by the Parties by agreement in writing;
"Termination for Convenience Notice"	has the meaning given to it in clause 14.3.1
"Tests on Completion"	Means the tests outlined in schedule 12
"Territory"	has the meaning given to it in the Project Data Sheet;
"Transfer Notice"	has the meaning given to it in clause 15.1.1.2
"UL Default"	has the meaning given to it in clause 14.2.1

"UL Conditions"	have the meaning given to them in clause 2.4;
"Underproduction"	means, in respect of a calendar month, the Required Solar Output in respect of that month less (i) the Actual Monthly Consumption for that month (ii) any Shortfall in respect of the relevant month and (iii) any Solar Output which was not deliverable to or receivable by UL due to a Force Majeure Event;
"Unilever Policies"	means those policies at the website URL identified as the "Unilever Policies" in schedule 7 (*Policies*), as such policies may be amended from time to time; and
"**US CPI"**	means the United States of America consumer price index (all urban consumers) as published by the United States Census Bureau; and
"Withholding Amount"	means the amount that UL is required by Applicable Law to withhold or deduct with respect to or which relates to any Tax.

SCHEDULE 2: PRICING SCHEDULE

Rate:	If the product of the Discount multiplied by the Market Reference Price is more than the Maximum Market Rate then the Rate will be the Maximum Market Rate. If the product of the Discount multiplied by the Market Reference Price is less than the Minimum Market Rate then the Rate will be the Minimum Market Rate. At all other times the product of the Discount multiplied by the Market Reference Price will be the Rate Denominated in GHS
Discount:	84%
Market Reference Price:	On the Commercial Operations Date and every annual anniversary after that date, the Market Reference Price is derived from the Reference Bill Paid in Ghanaian Cedis
Maximum Market Rate:	0.3000 USD/kWh (Year 1) The Maximum Market Rate will be escalated by US CPI on every annual anniversary of the Commercial Operations Date Denominated in US Dollars, but converted into and paid in Ghanaian Cedis on the basis of the Selling Rate for US Dollars on the business day invoice is paid
Minimum Market Rate:	0.1199 USD/kWh (Year 1) The Minimum Market Rate will be escalated by US CPI on every annual anniversary of Commercial Operations Date Denominated in US Dollars, but converted into and paid in Ghanaian Cedis on the basis of the Selling Rate for US Dollars on the business day invoice is paid
Required Solar Output:	means for each month after the Commercial Operations Date 80 per cent of the Expected Solar Output in respect of that month as defined in schedule 5

1. RATE CALCULATION

1.1 UL shall provide Developer with a copy of each electric utility bill constituting a Reference Bill within one month of receipt of such bill and in any event no later than one month prior to the annual anniversary of the Commercial Operations Date for each year of the Agreement. If

a Reference Bill is not provided in a reasonable time then Developer is entitled to use publicly available sources to reach a reasonable estimate of the Reference Bill.

1.2 Upon receipt of the Reference Bill from UL, Developer shall provide UL a calculation of the Market Reference Price and Rate for the subsequent year prior to the annual anniversary of the Commercial Operations Date for each year of the Agreement.

1.3 All Demand Charge savings associated with the System are excluded from the calculation of the Market Reference Price.

SCHEDULE 3: DESCRIPTION OF PREMISES AND SYSTEM

Part 1: System Configuration

		Phase 1
Installed DC capacity (PV modules		TBC
Installed AC capacity (Inverters)		TBC
PV module rating		TBC
Number of PV Modules		TBC
Inverter Rating		TBC
Number of Inverters		TBC

Part 2: Site Location and Delivery Point

Phase 1 includes the installation of solar panels on 7 buildings as indicated in the image below.

Part 3: Indicative Solar Layout

To be finalised upon completion of final designs

Part 4: Single Line Diagram (Indicates boundary limits for Ownership and Operation)

To be finalised upon completion of final designs. Delivery Point to be agreed in writing between the parties prior to commencement of works.

SCHEDULE 4: EARLY TERMINATION FEE

UL has the option to purchase the System prior to the end of the Agreement Term by issuing a Transfer Notice and paying the corresponding Early Termination Fee to CBE. The payment of the Early Termination Fee shall be full consideration for the purchase of the System. The Early Termination Fee following each Anniversary of the Commercial Operations Date represents the present value of the value to CBE of payments that would have been made by UL for power produced in subsequent years. If UL issues a Transfer Notice upon early termination, UL shall pay the Early Termination Fee upon Transfer Notice in Column 1 below. If UL issues a Removal Notice upon early termination, UL shall pay the Early Termination Fee upon Removal Notice in Column 2 below, which includes the costs of removal of the System.

The Early Termination Fee with respect to the Solar Plant under the Agreement shall be in accordance with the following:

	Column 1	**Column 2**
Early Termination Occurring following:	**Early Termination Fee upon Transfer Notice** (USD/Wp, does not include costs of removal)	**Early Termination Fee upon Removal Notice** (USD/Wp, includes costs of removal)
Date of Agreement	1.65	0.99
Anniversary 1	1.56	0.94
Anniversary 2	1.48	0.89
Anniversary 3	1.40	0.84
Anniversary 4	1.32	0.79
Anniversary 5	1.24	0.74
Anniversary 6	1.15	0.69
Anniversary 7	1.07	0.64
Anniversary 8	0.99	0.59
Anniversary 9	0.91	0.54
Anniversary 10	0.82	0.49
Anniversary 11	0.74	0.44
Anniversary 12	0.66	0.40
Anniversary 13	0.58	0.35
Anniversary 14	0.49	0.30

SCHEDULE 5: ESTIMATED MONTHLY AND ANNUAL PRODUCTION

Expected Solar Output commencing on the Commercial Operations Date (or, if later, the Commercial Operations Longstop Date) with respect to the Solar Plant under the Agreement shall be as follows:

Estimated Available Energy per Month for Year 1

Month	Expected Output (Year 1, kWh/Wp)
January	111.07
February	108.54
March	122.82
April	125.79
May	126.01
June	106.14

Month	Expected Output (Year 1, kWh/Wp)
July	114.55
August	115.06
September	123.33
October	135.80
November	123.83
December	114.55

Estimated Annual Available Energy for each year of the Term

Year of System Term	Expected Solar Output (kWh/kWp)
1	1,427
2	1,417
3	1,408
4	1,398
5	1,388
6	1,378
7	1,369
8	1,359
9	1,349
10	1,340

Year of System Term	Expected Solar Output (kWh/kWp)
11	1,331
12	1,321
13	1,312
14	1,303
15	1,294

The values set forth in the table above are estimates (and not guarantees), of approximately how many kWhs are expected to be generated annually by the System.

SCHEDULE 6: PLANNED OUTAGE SCHEDULE

CBE Planned Outages

Prior to the Commercial Operations Date, CBE will submit to UL the Planned Outages Schedule for year 1 of operation and subsequently on the anniversary of the Commercial Operations Date, CBE will submit to UL the Planned Outages Schedule for the upcoming year.

Planned Outages in any given year shall never exceed a total of 84 hours during the daytime solar productive hours (between 6am and 6pm).

UL Low Consumption Periods

In any given year UL may designate Low Consumption Periods. For the avoidance of doubt, the intention of these Low Consumption Periods is only to provide UL with the opportunity to conduct maintenance that will reduce consumption or to plan around periods of low consumption such as national holidays. UL may designate up to a total of 180 hours of Low Consumption Periods in year 1 of operation and then each subsequent year after that. During Low Consumption Periods UL shall only pay for energy metered by the billing meter in kWh at the Delivery Point, defined as $E_{metered}$ per Schedule 9. For a Low Consumption Period to commence, UL must notify CBE no less than thirty (30) days in advance with written justification for the request. For the avoidance of doubt, during periods of Low Consumption UL will prioritize consumption of Solar Output and will not substitute another power source on the Premises in place of Solar Output.

SCHEDULE 7: POLICIES

The RSP including the Mandatory Requirements can be accessed on:
http://www.unilever.com/responsible-sourcing-policy/

Unilever Responsible Business Partner Policy (RBPP)

Introduction

At Unilever, our ambition is to double the size of the company whilst reducing our environmental footprint and increasing our positive social impact. To achieve this, our relationships with business partners, such as suppliers, agents, distributors and commissionaires etc.., play a critical role.

Unilever's Code of Business Principles sets the standards of business integrity and corporate responsibility that we follow globally. We want to work with business partners who have values similar to our own and who work to the same standards as we do. This Policy sets out our overall requirements for appropriate conduct by our business partners. This may be complemented by additional guidance and policies tailored to specific relationships with third parties, such as our Responsible Sourcing Policy for suppliers.

Conducting business lawfully and with integrity

Compliance with Laws
All applicable laws and regulations are complied with in the countries in which the business partner operates, including relevant international laws and regulations such as those on trade sanctions, export controls, reporting obligations, data protection and antitrust.

Bribery
There is a prohibition of any and all forms of bribery, corruption, extortion or embezzlement and there are adequate procedures in place to prevent bribery in all commercial dealings undertaken by the business partner.

Conflicts of Interest
All and any conflict of interest in any business dealings with Unilever, of which the business partner is aware, will be declared to Unilever to allow Unilever the opportunity to take appropriate action. Any ownership or beneficial interest in a business partner's business by a government official or representative of a political party are declared to Unilever prior to any business relationship with Unilever being entered into.

Gifts, Hospitality and Entertainment
Any business entertaining or hospitality is kept reasonable in nature, entirely for the purpose of maintaining good business relations and not intended to influence in any way decisions about future business. Gift giving between a business partner's employees and Unilever's employees is avoided. Official company to company gift exchanges are acceptable but must be transparent and properly recorded.

Confidential and Competitor Information
All competitive information is obtained legitimately and will only be used for legitimate purposes in compliance with all applicable laws and regulations. No attempt is made at any time to divulge to Unilever any information about its competitors that is commercially sensitive or confidential to them, and not in the public domain. Likewise Unilever's confidential and commercially sensitive information

is competitive information that must not be circulated to any third party unless expressly permitted by Unilever.

Financial Records, Money Laundering and Insider Trading
All business and commercial dealings are transparently performed and accurately recorded in the business partner's books and records. There is no actual or attempted participation in money laundering. No confidential information in the business partner's possession regarding Unilever is used to either engage in or support insider trading.

Safeguarding Information and Property
Unilever's confidential information, know-how and intellectual property is respected and safeguarded. All information provided by Unilever that is not in the public domain is deemed confidential and is only to be used for its intended and designated purpose. All and any personal information about individuals, such as Unilever's consumers or employees are handled with full respect for the protection of their privacy and for all relevant privacy laws and regulations.

Product Quality
Products and services are stored and delivered to meet the specifications and quality and safety criteria specified in the relevant contract or product documents and are safe for their intended use.

Respecting employees' rights and human rights

Terms of employment
Policies are adopted and adhered to that respect legal and contractual rights of employees, both permanent and casual.

Employees are provided with a total compensation package that includes wages, overtime pay, benefits and paid leave which meets or exceeds the legal minimum standards or appropriate prevailing industry standards, whichever is higher, and compensation terms established by legally binding collective bargaining agreements are implemented and adhered to.

Employees are not required to work more than the regular and overtime hours allowed by the law of the country where the employees are employed. All overtime work by employees is on a voluntary basis.

Fair treatment, respect and dignity
All employees are treated with respect and dignity. No employee is subject to any physical, sexual, psychological verbal harassment, abuse or other form of intimidation. Discrimination, including based on race, age, role, gender, colour, religion, national origin, sexual orientation, marital status, dependents, disability, social class and political views is prevented. In particular, attention is paid to the rights of employees most vulnerable to discrimination.

Permitted workforce

No employees under the age of 15 or under the minimum age for work or mandatory schooling as specified by local law, whichever is the higher. When young employees are employed they must not do work that is mentally, physically, socially or morally dangerous or harmful or interferes with their schooling by depriving them of the opportunity to attend school. Forced labour, whether in the form of indentured labour, bonded labour or other forms, is not acceptable. Mental and physical coercion, slavery and human trafficking are prohibited.

Health and safety
A healthy and safe workplace is provided to prevent accidents and injury arising out of, or occurring in the course of work or as a result of the employer's operations.

Trade unions and collective bargaining
The legal rights of employees to freedom of association and collective bargaining are recognised and respected. Employees are not intimidated or harassed in the exercise of their legal right to join or refrain from joining any organization.

Commitment to Sustainability

Land rights
The rights and title to property and land of the individual, indigenous people and local communities are respected. All negotiations with regard to their property or land, including the use of and transfers of it, adhere to the principles of free, prior and informed consent, contract transparency and disclosure.

Sustainability and environment
Operations, including distribution of products and the supply of services are conducted with the aim to protect and preserve the environment.

Reporting Concerns, handling grievances and non-retaliation

Employees are provided with means by which to raise their concerns about any of the compliance requirements outlined in this Policy and all employees who speak out about an issue are protected from retaliation. Further, employees are provided with transparent, fair and confidential procedures that result in swift, unbiased and fair resolution of difficulties which may arise as part of their working relationship.

Reports can be submitted confidentially and anonymously (where permitted by law). For more information, click on Raise a Concern.

Implementation Tips

To support compliance with this Policy you may want to implement within your own business the following: employee training; communicate reporting and complaint mechanisms; communicate compliance policies and procedures; conduct periodic compliance reviews and assessments within your business; introduce remediation steps and action plans where compliance weaknesses are identified or suspected; ensure your own adequate compliance processes and mechanisms in place; and other similar steps.

SCHEDULE 8: NOTICE DETAILS

Notices to UL:

FAO:	Supply Chain Director / Vice President Supply Chain
Address:	P.O. Box 721 Tema
	Heavy Industrial Area, Publishing Road
[Fax Number:]	N/A
	Tel: +2533 (0)303 218 100 Ext 8164
[Email address]:	Siddharth.Ramaswamy@unilever.com;

Notices to CBE:

FAO:	Matthew Tilleard
Address:	P.O. Box CR 6217, Cantonments, Accra
	Airport Residential Area
[Fax Number:]	N/A
[E-mail address:]	matt.tilleard@crossboundary.com

SCHEDULE 9: CALCULATION OF ACTUAL MONTHLY PRODUCTION

UL has agreed to accept and pay for all Solar Output over the length of the Agreement.

In accordance with Good Solar Industry practice, Actual Monthly Production will be calculated by summing the total energy supplied during Normal Operation as well as the energy that was available to be supplied but was not consumed due to Curtailed Operation or a System Event.

CBE shall maintain accessible records that can distinguish when the Solar Plant is operating normally ("Normal Operation"), when the Solar Plant is operating on a curtailed basis due to no or inadequate demand or curtailment from UL ("Curtailed Operation") and when the Solar Plant is subject to a System Event.

The Actual Monthly Production shall be calculated as follows:

$$E_{month} = \sum_{i}^{j} E_{metered(i)} + \sum_{x}^{y} E_{Available(x)}$$

Where:

E_{month}	=	Actual Monthly Production in any given calendar month (kWh).
$E_{metered(i)}$	=	Energy metered by the billing meter in kWh at the Delivery Point during Normal Operation interval *i*.
j	=	Total number of intervals that the System is operation under Normal Operation During the applicable calendar month
$E_{Available(x)}$	=	Available Energy in kWh calculated for interval *x* according to the Available Energy Formula.
y	=	Total number of intervals that the system is subject to a System Event.

<u>Available Energy Formula</u>

During periods where the Solar Plant is available to deliver power but UL does not consume it (due to a System Event or during Curtailed Operation), except during a Low Consumption Period, UL has agreed to pay based on Available Energy. Available Energy will be calculated with reference to historical performance of the system, taking into consideration the onsite solar irradiation.

Available Energy for any given calendar month is calculated by considering the performance data from the previous month during Normal Operation and adjusting for in-plane irradiance for each 15 minute interval during the periods of a System Event or Curtailed Operation.

To calculate the Available Energy for the 15 minute interval *x*, the following formula shall be used:

$$E_{Available(x)} = \frac{E_{hist}}{Intervals} \times \frac{Irr_{(x)}}{Irr_{hist}}$$

Where:

$E_{Available(x)}$	=	Available Energy (kWh) for 15 minute interval *x*.
E_{hist}	=	Energy measured by the billing meter for the previous calendar month during periods of Normal Operation where the irradiance as measured by the onsite pyranometer is greater than 100W/m^2.

$Intervals$	=	Total number of 15 minute intervals that the plant was under Normal Operation conditions during the previous calendar month where the irradiance as measured by the onsite pyranometer is greater than 100W/m^2.
Irr_{hist}	=	Average in-plane irradiance measured for the previous calendar month during periods of Normal Operation (kW/m^2) where the irradiance as measured by the onsite pyranometer is greater than 100W/m^2.
$Irr_{(x)}$	=	In plane irradiance measured by the onsite reference pyranometer and averaged over 15 minute interval *x* (kW/m^2).

SCHEDULE 10: CUSTOMER ENABLING WORKS

The following enabling works are required to be carried out by UL:

Key

R = Responsible

A = Provide Assistance

DESCRIPTION	DEFINITION	**Customer**	**Developer**
Site clearance	Remove all trees and other obstacles that may hinder the Contractor during installation of the System.	A	R
Existing site services	Diversion and / or disconnection of existing site services where the installation works may interfere.	R	
Site Access	Ensure access for trucks with 40" containers to the storage room and to site.	R	
Laydown Area	Allocation of a flat area with dimensions of at least 25m x 25m for short term storage	R	
Storage room	Allow Developer access to a lockable storage room proximate to the site	R	
Perimeter security provisions	Provide 24/7 security as part of standard site security protocol already existing on Unilever site.	R	
Provision of utility services to the site	Electricity and water as required for the installation works. Water as required for the purposes of cleaning the PV modules during operation.	R	
Provision of LV interconnection point for PV system feed-in	Allocate sufficient space in the LV switchboard to allow for the installation of cables and/or breakers required to interconnect the solar system.	R	A
Interconnection to switchgear	Interconnection of the PV generated power to the LV switchgear	A	R
Inspection and approval of interconnection works	Customer to provide for the inspection and approval of the interconnection works, including 3rd party resources, as far as this is required by the Customer.	R	A
Staff Welfare Facilities	Customer to grant Developer access to sanitary facilities (fit for purpose) during scheduled work hours	R	
Temporary Office Space	Customer to provide temporary office space to the Developer for the period of construction	R	
Sign-off on structural assessment report	Customer to take responsibility of the roof integrity and give approval for the solar system to be installed based on the findings of the structural assessment report.	R	A
Building permit (if required)	It is the duty of the owner of the roof to obtain and pay for the building permit for installation and operation of a solar PV system.	A	R

License and permitting	Ensure all legal conditions are met upon which construction can commence.	A	R
Inform the energy commission of solar system connection	Give notice to Energy Commission (EC) that the system is complete and ready for commissioning.	A	R
Interconnection down time	Customer to make provision for downtime, Developer to notify Customer 4 weeks before connection is required.	R	A
Auxiliary Power and Internet on site	Internet connection and auxiliary power as required for the control and monitoring system.	R	A
Fuel Save Controller (FSC)	Customer to Provide historical data from Generator controller in order to pre-configure the FSC (if available)	R	A
Provision for the installation of CT's for FSC control	Customer to provide access to busbar or ECG mains to connect our CT's to the conductors.	R	A
Generator controllers	In order to optimise the integration of the solar with the generators and to minimise the generator runtime and diesel consumption, the Customer will need to allow for synchronisation of the generators.	R	
Design Acceptance	Once the system is designed and following the date of the Agreement, the Customer is responsible to review and accept the Engineering and Execution methodology prior to any purchase of equipment or installation. The Customer shall have 7 days from receipt of design documentation to review. If after 7 days no comments have been received the design will be considered accepted.	R	A

SCHEDULE 11: SHORTFALL

Where Shortfall Payments are owed to UL by CBE under the terms laid out in clause 4.3 (System Disruptions) of The Agreement, they shall be calculated as follows:

$$SP = (E_{Guaranteed} - E_{month}) \times (P_{Alternate} - P_{Solar})$$

Where:

SP	=	Shortfall Payment owed by CBE to UL;
$E_{Guarenteed}$	=	Required Solar Output as defined in The Agreement for the applicable month;
E_{month}	=	Actual Monthly Production in any given calendar month (kWh).
$P_{Alternate}$	=	The cost incurred in $/kWh to either: 1. procure Shortfall electricity for the period of the Shortfall from an electricity utility or another third Party electricity supplier; or 2. self generate Shortfall electricity for the period of the Shortfall, including any direct fuel costs and any reasonable and proportionate sums attributable to the upkeep and maintenance of any equipment required to generate electricity for the period of the Shortfall.
P_{Solar}	=	The Rate applicable to the supply of solar power for the applicable as defined in the Agreement ($/kWh);

SCHEDULE 12: TESTS ON COMPLETION

1. PERFORMING TESTS ON COMPLETION

1.1 CBE shall give UL not less than seven (7) days prior notice of the date after which CBE intends to carry out the Tests on Completion. Tests on Completion shall be carried out within seven (7) days after this date. UL and any third party UL may so require, shall be entitled to attend the Tests on Completion but shall not be obliged to. The Tests on Completion shall be carried out in accordance with this Schedule.

1.2 If the Tests on Completion are delayed or postponed by UL on more than one occasion, and CBE is prevented from carrying out the Tests on Completion as a result thereof, CBE may carry out the Test on Completion in the absence of UL after having given UL written notice of its intention to do so, specifying the date and time on which it shall undertake such tests. Any tests that require the presence of UL shall be performed as soon as practicably possible, taking into consideration that time is of the essence.

1.3 The Solar Plant shall be considered to have met requirements of 3.1.2 and 3.1.3 on the date on which the Tests on Completion are met and the Solar Plant complies with the Specifications set out in Schedule 3.

1.4 CBE and UL shall complete a commissioning certificate (the "Commissioning Certificate") as evidence of the date the above shall have occurred, signature of which by either Party shall not delay the date that such is deemed to have been met by CBE.

1.5 If the Solar Plant fails to pass the Tests on Completion, CBE shall promptly take whatever steps as may be necessary to enable the Tests on Completion to be passed and the process in clause 3.2.1 shall be repeated save that the period of notice required to be given by CBE pursuant to clause 3.1 shall be reduced to three (3) days.

2. PRE-COMMISSIONING TESTS

2.1 Final installation checkout

A final installation checkout confirms that the installation is complete before conducting any testing and beginning operations. CBE is responsible for performing the final installation checkout, prior to formal inspections by UL. With the exception of the PV array, all circuits should be de-energized wherever possible in preparation for system testing. The Installation Checklist (CBE supplied commissioning documentation thereon referred to as the "Commissioning Documents") is to be used to check off items as they are completed, and includes the following items:

2.1.1 Verifying that all structural and electrical components are properly installed and secured.

2.1.2 Verifying that all components are installed in a neat and workmanlike manner, including wire management practices.

2.1.3 Verifying proper connections and terminations, including terminal torque specifications.

2.1.4 Verifying that all required system and equipment labels, marking and placards are correct and in the proper locations.

2.1.5 Verify that any calibrations or adjustments for inverters, charge controllers or other equipment are properly set or programmed.

2.1.6 Verifying that all disconnects are open, fuses are removed and lockout/tagout procedures are in place.

2.1.7 Identifying and completing any unresolved items.

2.1.8 Completing site cleanup and restoring site to original conditions.

2.2 Visual Inspection

Prior to Provisional Acceptance Testing, CBE is responsible for completing the visual inspection of the PV systems and should be inspected for full compliance with locally applicable standards. The Visual Inspection Checklist, (see Commissioning Documents) is to be completed by CBE at the time of inspection and includes but is not limited to the following:

2.2.1 All equipment shall be properly listed, identified and labelled, suitable for the conditions of use, and be installed according to the listed product instructions.

2.2.2 All equipment shall be installed in a neat and workmanlike manner, consistent with quality craftsmanship standards in the electrical construction industry.

2.2.3 All equipment shall be mechanically secured and provided with adequate ventilation or cooling as required.

2.2.4 All electrical terminations and connections shall be made using approved products and installation methods. This includes consideration of conductor and terminal materials, temperature ratings, and use of specially approved terminals for use with stranded conductors.

2.2.5 All electrical equipment shall be marked with the manufacturer's identification and applicable specifications and ratings in relation to the As Built Records

2.2.6 Correct supply and positioning of all civil, mechanical and electrical infrastructure with reference to the As-Built Records;

2.2.7 Proper mounting of the modules, inverters, mounting structures. The verification of their quantity and consistency with the As Built Records (including but not limited to the type of technology, shading effects and absence of damages)

3. ACCEPTANCE TESTING

CBE is responsible for supplying all equipment required to carry out the tests as specified below. CBE is required to document all measurements and test results using the Acceptance Tests (documented as per Commissioning Documents).

Scope: The following tests shall be conducted on the PV system:

3.1 **Continuity and Resistance Testing** shall be performed to verify the integrity of grounding and bonding systems, conductors, connections and other terminations. Continuity testing is commonly used to verify grounding and bonding connections in electrical systems. These tests also verify the proper operation of disconnecting means and the function of overcurrent

protection devices like fuses and circuit breakers. Measurements of resistance can also be used for estimating voltage drop in conductors, terminations and other connections and for evaluating windings in motors and transformers.

Electrical resistance and continuity testing is used to confirm the following requirements:

3.1.1 Verify the finish or anodizing on aluminum or other metallic components has been satisfactorily removed or penetrated for equipment bonding connections.

3.1.2 Verify that all available grounding electrodes are bonded together and form a single grounding electrode system.

3.1.3 Verify the grounding electrode conductor is continuous and the viability of any irreversible splices, welds or other connections are made using approved means where permitted. Also verify the connection of the grounding electrode conductor to the grounding electrode.

3.1.4 Verify that metal raceways, enclosures, frames, fittings, and other components serving as equipment grounding conductors are properly bonded together.

3.1.5 Verify that metallic raceways and enclosures are joined into a continuous electrical conductor.

3.1.6 Verify that metal parts of all PV module frames, support structures and other equipment are bonded to the equipment grounding system.

3.1.7 Verify the continuity of equipment grounding connections and bonding jumpers when PV modules or inverters are removed from a circuit for service. Similar requirements also apply to maintaining the continuity of equipment grounding conductors to metallic boxes containing receptacles, luminaires and other devices that may be removed for service.

3.1.8 Verify that continuity between the grounded PV array source circuit and output circuit conductors remain bonded to the grounding electrode conductor whenever an inverter or other equipment is removed for service.

3.1.9 Continuity and resistance testing should only be performed on de-energized circuits and conductors.

3.2 **Polarity Testing** shall be conducted to verify the correct polarity for PV DC circuits, and proper terminations for DC utilization equipment. Polarity is verified by measuring the voltage on energized circuits, prior to closing disconnects and operating the system for the first time. The polarity of array wiring and dc equipment is a critical concern for PV installations. The polarity of every source circuit and the entire PV power source must be verified prior to connecting to any dc utilization equipment, such as batteries, charge controllers, inverters or electrical loads.

Reversing the polarity of an individual PV source circuit within a combiner box will simply cancel the current output from other parallel-connected strings wired with proper polarity. To help reduce confusion and promote better wire management practices, all PV circuit conductors are to be clearly identified by labeling, grouping, or color coding at all terminations, connections or splices. All source circuit fuses and module bypass diodes should be checked if modules or strings are ever connected in reverse polarity.

Polarity must be verified on the following DC components and PV system circuits:

3.2.1 Photovoltaic modules

3.2.2 Photovoltaic source circuits

3.2.3 Photovoltaic output circuits

3.2.4 Disconnecting means

3.2.5 Inverter input terminations

3.2.6 Electrical loads

3.3 **Voltage and Current Testing** shall be conducted to verify that PV array and system operating parameters are within specifications. Basic voltage and current tests are to be conducted on both dc and ac circuits in PV systems to verify these parameters are within acceptable limits prior to closing disconnects and beginning system operations.

Prior to operations, voltage shall be verified for the following circuits and sources in PV systems:

3.3.1 Verify ac voltage and correct phasing at utility supply, inverter ac terminals and disconnects, and electrical generators as applicable.

3.3.2 Verify dc voltage and correct polarity for PV array source and output circuits and at dc disconnects.

3.3.3 Verify dc voltage and correct polarity for battery, charger and charge controller subsystems.

3.3.4 Open-Circuit Voltage Testing.

Prior to closing the PV array dc disconnects, the open-circuit voltage (Voc) for each PV array source circuit will be tested and compared with expectations. This test can also be used to verify proper polarity.

The following formula is to be applied to all strings (such testing to be performed at an ambient temperature within the range of 0ºC to 40ºC):

$$VOC_{meas}(STC) \geq 0.95 \times VOC_{nom}$$

where:

$VOC_{meas}(STC)$ is the string open circuit voltage [V], measured with a target measurement uncertainty of ±1%, adjusted, for Standard Test Conditions.

VOC_{nom} is the sum of open circuit voltage [V] of each module of the string, given by the module's datasheet.

3.3.5 Short-Circuit Current Testing

Short-circuit current tests are conducted on PV string source circuits to verify proper readings and that the circuits are clear from major faults. Similar to the open-circuit voltage tests, these tests are only intended to verify proper system operation, not performance.

Short-circuit current is directly proportional to the solar irradiance incident on the array. Consequently, these tests must be done quickly, under steady clear sky conditions at as close to the same irradiance level as possible. Make sure the array is not shaded or particularly soiled prior to testing. Short-circuit current readings taken under steady conditions must typically be within 5% or one another.

The following formula is to be applied to all strings (such testing to be performed at an ambient temperature within the range of 0ºC to 40ºC):

The following formulas are adhered to for a random sample of 10% of the total strings (such testing to be performed at an ambient temperature within the range of 0ºC to 40ºC):

$$ISC_{meas}(STC) \geq 0.95 \times ISC_{nom}$$

where:

$ISC_{meas}(STC)$ is the string short circuit current [A] at Standard Test Conditions, measured with a target measurement uncertainty of ±1%, adjusted, for Standard Test Conditions.

ISC_{nom} is the lowest short circuit current [A] of each module of the string, given by the module's datasheet.

If irradiance measurements are also made simultaneously with short-circuit current measurements, the results can easily be translated to a reference irradiance condition, for example 1000 W/m2, to compare with specifications.

3.4 **Insulation resistance testing** shall be performed to verify the integrity of wiring and equipment, and used to detect degradation and faults to wiring insulation.

Insulation resistance tests are used to verify and demonstrate the integrity of electrical wiring systems and equipment. These tests are used to assess degradation or damage to wiring insulation and to locate faults within PV arrays and other system circuits. Insulation tests are an important element of the commissioning, acceptance testing and preventative maintenance for PV systems.

The quality of conductor insulation can be determined by measuring its resistance. Insulation resistance is determined by applying a constant test voltage to a conductor and measuring the current flow between the conductor and ground, or between other de-energized system conductors. As wiring insulation degrades, its resistance decreases and the small current flow through the insulation increases. The higher its resistance value, the better the conductor insulating quality. Excessive leakage current can present an electrical shock hazard, damage equipment and degrade system performance.

Insulation resistance and leakage current testing are used to verify the integrity of the following PV system circuits and components:

3.4.1 Verifying integrity of PV modules and array source and output circuit conductors.

3.4.2 Measuring the leakage current through overcurrent and disconnect devices, including fuses, switches and circuit breakers.

3.4.3 Testing the grounding electrode resistance.

It is CBE's responsibility to ensure that the testing procedure and results are in line with the IEC 62446 standard for conducting insulation resistance testing on PV arrays.

System functionality Tests shall be performed to verify the automated safe shutdown and start procedures under all operating conditions.

System functional testing verifies proper system operation, including start-up, shut-down and nominal operating conditions. These tests confirm that system's operating parameters are within expected and nominal limits, but are not intended to verify system ratings in accordance with specifications or warranty provisions. Additional detailed testing, using additional measurements and normalizing data are required to verify performance with system ratings.

System functional tests ensure that the system starts and operates properly, and can be safely disconnected. Functional tests conducted on the PV systems must include the following:

3.4.4 Verifying the proper operation of disconnecting means and component connection and disconnection sequences.

3.4.5 Verify that interactive inverters and ac modules de-energize their output to utility grid upon loss of grid voltage. This is a safety requirement to prevent interactive inverters from operating as an islanded electrical system without voltage or frequency control, and preventing them back feeding de-energized electrical systems. These functions are performed internally by all utility-interactive inverters listed according to the IEEE 1547 and UL1741 standards.

3.4.6 Verify that interactive inverters automatically reconnect to their output to the grid once the voltage has been restored for at least 5 minutes.

3.4.7 Verify the proper grid voltage and frequency to operate inverters, including evaluating voltage drop between the inverter ac output and point of connection to the grid.

3.5 **Performance Ratio Testing** verifies the system power and energy output are consistent with expectations. These tests also require measurements of array temperature and solar irradiance.

3.5.1 The designed Performance Ratio shall be 80% (the "Performance Ratio")

3.5.2 The Performance Ratio shall be measured for 3 consecutive days of operation (72 hours) of full continuity (the "Testing Period")

3.5.3 CBE shall be required to show that the Performance Ratio measured during testing ("the Measured Performance Ratio") of the Facilities shall, at a minimum, achieve the Performance Ratio over the Testing Period for the Facilities subject to the conditions stated herein.

3.5.4 The Measured Performance Ratio is the Performance Ratio measured during the Test Period, corrected for the temperature using the Temperature Correction Factor (TCF) defined below, discounting any time the grid is unavailable.

3.5.5 The following measuring instruments will be used:

3.5.5.1 one Pyranometer, in the plane of the array,

3.5.5.2 temperature sensors type PT100 to measure module temperature.

3.5.6 Data will be gathered at least every 15 minutes and values for cumulative kWh generated, irradiation and temperature will be logged with sensors, which have been checked against calibrated units.

3.5.7 The performance ratio calculation will be executed under an irradiation with at least 400 W/m² measured in the Module plane over a period of min. 3 hours/day. 3 hours per day. Single uninterrupted operation period (100% availability for the whole capacity) has to be min 3 hours.

3.5.8 If there occur days during the testing period in which the minimum irradiation level cannot be reached, these days will be added to extend the testing period.

3.5.9 The Measured Performance Ratio will the calculated using the formula:

$$PR = \frac{Eg}{\frac{H}{G} * TCF * (Pstc * DEG)}$$

Where:
Eg is the cumulative energy generation in AC kWh generated,
Pstc is threated power of the entire array in kWp,
TCF is the temperature correction factor
H is the cumulative in plane radiation in kWh/m2,
G is the reference radiation at STC (1000kWh/m^2),
DEG is the module degradation factor

$$DEG = \left(\frac{ROD * t}{365}\right)$$

ROD is the degradation as specified by manufacturer in % loss,
t is the time from first module mounted till the day of the test in days

$$TCF = 1 - \left((Tm - 25^0C) * \left(\frac{\gamma}{100}\right)\right)$$

Where:
γ = Temperature coefficient of Power for the supplied modules
Tm = Average module temperature over the measuring interval in ºC

Tm = Average module temperature over the measuring interval in ^{o}C

SCHEDULE 13: REQUIRED INSURANCES

CBE will obtain, at its own expense, the following insurance ("Insurance Cover") to the reasonable satisfaction of UL: Professional indemnity insurance, Public liability insurance, Contract works insurance, assets all risk insurance over the Facilities, Energy Storage and Generator Equipment (as applicable) which shall include natural disasters, loss or damage caused by accidental damage, fire, explosion, burglary, theft, flood, lightning, hail, wind, and damage due to animals, vehicles or falling trees.

UL will obtain, at its own expense, the following insurance: Public Liability Insurance to the reasonable satisfaction of CBE; Property insurance against loss or damage to any building or structures used by CBE.

SCHEDULE 14: MILESTONE SCHEDULE

Milestone	Days from SSA Execution (NTP)
SSA Execution	Notice to Proceed (NTP)
Site Establishment	NTP + 105 days
Equipment Delivery to Site	NTP + 119 days
Mechanical and Electrical Installation	NTP + 159 days
Pre-Commissioning Tests	NTP + 172 days
Commissioning Tests	NTP + 182 days
Performance Tests	NTP + 209 days
Commercial Operation	NTP + 210 days

The dates set forth in the table above are estimates (and not guarantees) of the achievement of project delivery milestones. Guaranteed dates are referenced in the Project Data Sheet.

SCHEDULE 15: EXAMPLE METHODOLOGY AND APPROACH FOR CALCULATING MARKET REFERENCE PRICE FROM UL REFERENCE BILL

Methodology applied to example Reference Bill

UGL Reference Bill (April 2016)

From	To	Item	Units	Price	Amount
01/04/2016	30/04/2016	Energy Charge	919356.050 kWh	0.7809	717,925.14
01/04/2016	30/04/2016	Demand	1992.820 kVA	50.6537	100,943.71
01/04/2016	30/04/2016	Service Charge	30 days	1.9376	58.13
01/04/2016	30/04/2016	Government Levy	919356.050 kWh	0.0390	35,854.89
01/04/2016	30/04/2016	Street Light	919356.050 kWh	0.0390	35,854.89
01/04/2016	30/04/2016	VAT	818926.98GHc	0.1500	122,839.05
01/04/2016	30/04/2016	NHIL	818926.98GHc	0.0250	20,473.17
		Cash Discrepancy (-)		0.0000	-68,830.26
			Current Bill		
			Previous Balance		965,118.72
			Amount Payable		1,071,452.94

1. Identify all charges in Reference Bill which vary with kWh consumption (excluding VAT/NHIL)

2. Calculate the sum of all 'per kWh' charges in the Reference Bill:
   - 0.7809 + 0.0390 + 0.0390 = **0.8589**

**Note: Above example is illustrative and outlines representative pricing for April 2016 bill. The final Market Reference Price used for each period will be determined based on the methodology outlined in this agreement.*